

Court No. - 9

Case :- CIVIL MISC REVIEW APPLICATION

DEFECTIVE No. - 222 of 2024

Applicant :- Gudiya @ Sapna And 3 Others

Opposite Party :- State Of U.P. Thru. Prin. Secy.
Ministry Energy U.P. And 5 Others

Counsel for Applicant :- Piyush Asthana

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Subhash Vidyarthi,J.

**Order on C.M. Application No. I.A./1/2024-
(Application for Condonation of Delay)**

- 1.** This is an application for condonation of delay in filing the present Review Application.
- 2.** The office has reported a delay of 22 days in filing the instant Review Application.
- 3.** Cause shown in the affidavit filed in support of the application for condonation of delay in filing the review application is sufficient.
- 4.** Application is *allowed*.
- 5.** Delay in filing the Review Application is condoned.
- 6.** The Review Application shall be treated to have been filed within time.

Order on Review Application

- 1.** By means of the instant Review Application, the applicant is seeking review of the order dated 21.09.2024 passed by this Court dismissing the writ petition, namely, Writ-C No.8158 of 2024 which was filed seeking a writ of Mandamus to the respondents either to restore the earlier electricity connection or to provide a new electricity connection to the petitioner without insisting for a "No Objection Certificate" from the respondent no.6.

The aforesaid writ petition was dismissed after taking into consideration the submissions of

learned counsel for the respondent nos.2 to 5 that the Rules framed under the Electricity Act 2003, and Paragraph 4.4 of the Electricity Supply Code 2005, provide that an electricity connection cannot be given without a "No Objection Certificate" from the owner of the premises.

2. The writ petitioner has not produced any "No Objection Certificate" and no ground has been taken to make out any error, which may be apparent on the face of the record in the aforesaid reasoning recorded by this Court in the order dated 21.09.2024.

3. Therefore, we do not find any error in the order dated 21.09.2024 passed by this Court, much less an error which may be said to be apparent on the face of the record.

4. The Review Application lacks merit and the same is ***rejected***.

Order Date :- 28.5.2025

Rahul